

Tentative Rulings for August 19, 2026
Department 503

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

24CECG02539 *Lupe Herrera v. Matthew Stephans* is continued to Wednesday, September 16, 2026, at 3:30 p.m. in Department 503.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 503

Begin at the next page

(03)

Tentative Ruling

Re: ***Reyes v. Mad Duck Brewing, LLC***
Case No. 22CECG02134

Hearing Date: August 19, 2026 (Dept. 503)

Motion: Defendants' Petition to Confirm Arbitration Award

Tentative Ruling:

To correct the arbitrator's award by striking out the portions of the arbitrator's award that purports to dismiss the representative PAGA claims in *Ariel Reyes v. Mad Duck Brewing LLC, et al.*, filed in Fresno County Superior Court as Case Nos. 22CECG02134 and 23CECG00936, and to grant the petition to confirm the final corrected arbitration award. (Code Civ. Proc. § 1285, *et seq.*)

Explanation:

Under Code of Civil Procedure section 1285, "Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondents all parties to the arbitration and may name as respondents any other persons bound by the arbitration award." (Code Civ. Proc., § 1285.)

"If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." (Code Civ. Proc., § 1286.)

The court shall vacate the award if the court determines any of the following:

- (1) The award was procured by corruption, fraud or other undue means.
- (2) There was corruption in any of the arbitrators.
- (3) The rights of the party were substantially prejudiced by misconduct of a neutral arbitrator.
- (4) The arbitrators exceeded their powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted.
- (5) The rights of the party were substantially prejudiced by the refusal of the arbitrators to postpone the hearing upon sufficient cause being shown therefor or by the refusal of the arbitrators to hear evidence material to the controversy or by other conduct of the arbitrators contrary to the provisions of this title.
- (6) An arbitrator making the award either: (A) failed to disclose within the time required for disclosure a ground for disqualification of which the arbitrator was then aware; or (B) was subject to disqualification upon grounds specified in Section 1281.91

but failed upon receipt of timely demand to disqualify himself or herself as required by that provision... (Code Civ. Proc., § 1286.2, subd. (a).)

"Subject to Section 1286.8, the court, unless it vacates the award pursuant to Section 1286.2, shall correct the award and confirm it as corrected if the court determines that: (a) There was an evident miscalculation of figures or an evident mistake in the description of any person, thing or property referred to in the award; (b) The arbitrators exceeded their powers but the award may be corrected without affecting the merits of the decision upon the controversy submitted; or (c) The award is imperfect in a matter of form, not affecting the merits of the controversy." (Code Civ. Proc., § 1286.6.)

The Code of Civil Procedure sections dealing with vacation and correction of arbitrational warrants provide the exclusive grounds upon which court may review a private arbitration award. (*J. Alexander Securities, Inc. v. Mendez* (1993) 17 Cal.App.4th 1083.) "[A]n award reached by an arbitrator pursuant to a contractual agreement to arbitrate is not subject to judicial review except on the grounds set forth in sections 1286.2 (to vacate) and 1286.6 (for correction)." (*Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 33.) Absent proof of one of the grounds listed in those sections, a court may not intervene. Even "the existence of an error of law apparent on the face of the award that causes substantial injustice does not provide grounds for judicial review." (*Ibid.*)

Here, the court in the related PAGA action, *Reyes v. Mad Duck Brewing, LLC.*, case no. 23CECG00936, has already ruled on defendants' petition to confirm the arbitration award in that action. (See Court's May 13, 2026 Order on Petition to Confirm Arbitration Award in *Reyes v. Mad Duck Brewing, LLC.*, case no. 23CECG00936, attached as Exhibit D to Hadlock decl. The court will take judicial notice of the order in the related case under Evidence Code section 452, subd. (d).) In the petition to confirm arbitration award in the PAGA action, defendants sought to confirm the same award that they now seek to confirm in the present case. The court in the PAGA action found that the arbitrator had exceeded his authority when he dismissed the plaintiff's representative PAGA claims, as the court had previously found that the representative PAGA claims were not subject to arbitration and that the representative claims would be stayed until the arbitration was resolved. (Court's Order on Petition to Compel Arbitration, p. 4, last full paragraph.) Thus, the court struck the portions of the award that purported to dismiss the representative claims in the pending Superior Court case, and it clarified that only the individual PAGA claim was before the arbitrator. (*Ibid.*) However, the court granted the motion to confirm the remainder of the award and enter judgment thereon, subject to the corrections it had noted. (*Id.* at p. 5, second full paragraph.)

Defendants' present petition also seeks to confirm the same arbitration award that the court in the related PAGA action found to be partially defective. Defendants' petition does not point out the corrections that the court in the PAGA action made before entering the judgment in that case. Thus, it appears that defendants are seeking to obtain a judgment that dismisses the entire PAGA action, despite the court in that action having determined that the arbitrator's order exceeded his jurisdiction to the extent that he purported to dismiss the representative PAGA case. As a result, the court intends to find that the defendant's petition is barred by the doctrine of collateral estoppel to the extent that it seeks to enter a judgment dismissing the representative PAGA claim. (*JPV I L.P. v. Koetting* (2023) 88 Cal.App.5th 172, 191.)

Also, even if the doctrine of collateral estoppel did not apply here, the court would reach the same result as the court in the PAGA action. The court's order compelling the parties to arbitration in this case found that the attempted waiver of the right to bring PAGA claims in the arbitration agreement was unconscionable and unenforceable. The court then severed the language regarding waiver of the right to bring PAGA claims and enforced the rest of the agreement. (Court's April 12, 2023 Order Granting Petition to Compel Arbitration, p. 8, lines 13-21.) The court also declined to dismiss any representative claims under PAGA, and instead stayed the case pending resolution of the arbitration of plaintiff's individual claims. (*Id.* at p. 8, lines 24-26.) The court in the related PAGA action made a similar order, which sent plaintiff's individual PAGA claims to arbitration and stayed the case regarding the representative claims. (Court's Order of August 17, 2023 in case no. 23CECG00936, p. 5.)

Thus, the courts in the two related actions never compelled arbitration of the representative PAGA claims, and the arbitrator had no jurisdiction to dismiss those claims. Consequently, the arbitrator exceeded his authority to the extent that he purported to dismiss the representative PAGA claims. As a result, the court will not confirm the portion of the arbitrator's award that purports to dismiss the representative PAGA claims. Instead, the court will correct the award by striking out the language that purports to dismiss the representative PAGA claims and dismiss the PAGA action.

Specifically, the court will strike "all" at line 6 of page 2 of the order, insert the word "individual" between "the PAGA" at line 6 of page 2, strike "and the entire case entitled *Ariel Reyes et al. v. Mad Duck Brewing, LLC, et al.*, filed in Fresno County Superior Court as Case No. 23CECG00936, is dismissed with prejudice" at page 2 lines 7 through 9, and to strike "and are dismissed with prejudice from both civil cases entitled *Ariel Reyes et al. v. Mad Duck Brewing LLC, et al.*, filed in Fresno County Superior Court as Case Nos. 22CECG02134 and 23CECG00936. The entirety of the civil case entitled *Ariel Reyes et al. v. Mad Duck Brewing, LLC, et al.*, filed in Fresno County Superior Court as Case No. 23CECG00936, is also dismissed with prejudice" at page 2, beginning at line 13 and continuing through line 17.

However, the court will confirm the rest of the arbitrator's award, as plaintiff has not shown that the award is defective in any other way. Indeed, the court in the related PAGA action has already confirmed the rest of the award and entered judgment thereon, subject to the corrections noted by the court. The court in the present case intends to do the same. Accordingly, the court intends to grant the petition to confirm the arbitration award and enter judgment pursuant to the terms of the corrected arbitration award.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/13/2026.
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: ***Sandra Flores v. State Center Joint Community College District***
Superior Court Case No. 25CECG05483

Hearing Date: August 19, 2026 (Dept. 503)

Motion: by Defendant Moonlight Packing Company, LLC to Compel Initial Responses to (1) Form Interrogatories, Set One; (2) Special Interrogatories, Set One; and (3) Request for Production, Set One, from plaintiff Sandra Flores

Tentative Ruling:

To grant each of the motions to compel initial responses to form and special interrogatories, and request for production of documents. Within ten (10) days of service of the order by the clerk, plaintiff Sandra Flores shall serve verified responses, without objections, to Form Interrogatories—General, Set One; Special Interrogatories, Set One; and Request for Production, Set One; and produce all documents responsive to the Request for Production.

To impose monetary sanctions in the total amount of \$1,005.00 against plaintiff Sandra Flores, in favor of defendant Moonlight Packing Company, LLC. Within thirty (30) days of service of the order by the clerk, plaintiff Sandra Flores shall pay sanctions to defendant Moonlight Packing Company, LLC counsel at Vogl Meredith Burke & Streza LLP.

Explanation:

Initial Responses to Interrogatories and Request for Production

Within 30 days of service of interrogatories, the party to whom the interrogatories are propounded shall serve the original of the response to them on the propounding party. (Code Civ. Proc., § 2030.260.) Within 30 days of service of a demand for inspection, the party to whom the interrogatories are propounded shall serve the original of the response to them on the propounding party. (Code Civ. Proc., § 2031.260.) A party that fails to serve a timely response to a discovery request waives “any objection” to the request. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a).) The propounding party may move for an order compelling a party to respond to the discovery request. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).)

To date, defendant Moonlight Packing Company, LLC (“defendant”) has received no response to the interrogatories and request for production propounded on plaintiff Sandra Flores (“plaintiff”). (Streza Decls., ¶ 7.) Accordingly, an order compelling plaintiff to provide initial, verified responses is warranted. (Code Civ. Proc. § 2030.290, subd. (b), 2031.300 subd. (b).) All objections are waived. (*Id.*, §§ 2030.290, subd. (a), 2031.300, subd. (a).)

Monetary Sanctions

Sanctions are mandatory unless the court finds that the party acted "with substantial justification" or other circumstances that would render sanctions "unjust." (Code Civ. Proc., §§ 2030.290 subd. (c), 2031.300, subd. (c).)

The court finds no circumstances that would render the mandatory sanctions unjust. Defendant was entitled to propound the discovery at issue. (Code Civ. Proc., § 2030.020, subd. (b); 2031.020, subd. (b); 2033.020, subd. (b).) Plaintiff thereafter was obligated to provide timely, verified responses, or seek other timely relief. As plaintiff did neither, defendant's motions, and request for sanctions, are appropriate.

Defendant seeks sanctions in the amount of \$2,655, calculated at \$885 per motion. However, the amount of sanctions may be reduced as the motions are straightforward, without issue, and arising from the same set of facts. The motions are virtually identical. Further, defendant has not needed to spend time on the anticipated opposition, reply, and hearing or to meet and confer. The court finds it reasonable to allow for three hours of preparation for all three motions, calculated at counsel's hourly rate of \$275 per hour, and to allow for recovery of the three motion filing fees. Accordingly, monetary sanctions will be imposed in the total amount of \$1,005.00 against plaintiff Sandra Flores.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/17/2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Verve Greens, Inc. v. Corporate America Lending, Inc. et al.***
Superior Court Case No. 24CECG03843

Hearing Date: August 19, 2026 (Dept. 503)

Motion: Motion to Interplead and Discharge

Tentative Ruling:

To take off calendar as mooted by order entered July 21, 2026.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/18/2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: **Verduzzco v. Hernandez**
Superior Court Case No. 25CECG01594

Hearing Date: August 19, 2026 (Dept. 503)

Motion: Motion for Leave to Amend

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/18/2026.
(Judge's initials) (Date)